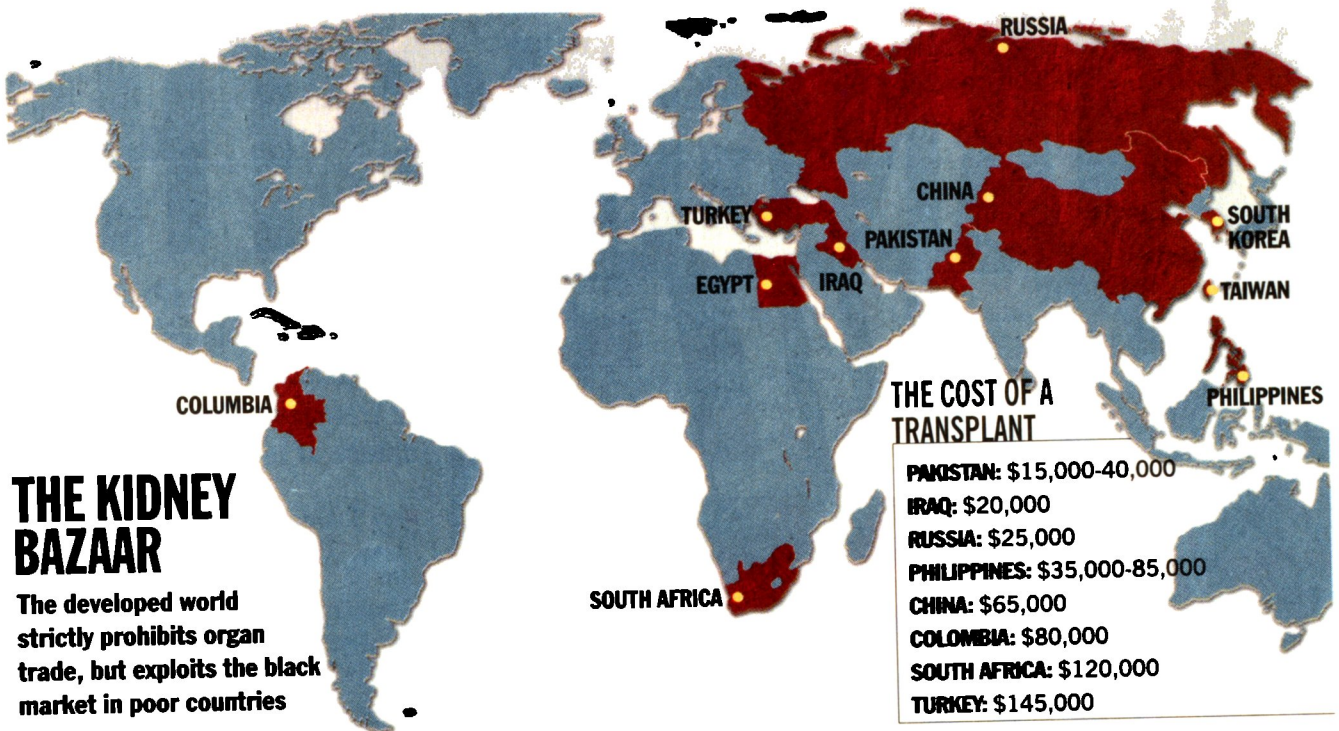




THE KIDNEY BAZAAR

The developed world strictly prohibits organ trade, but exploits the black market in poor countries

USA: Illegal to sell or pay for organs. By a new act, the government now reimburses living donors.

UK: Human Organ Transplants Act of 1989 prohibits the sale or solicitation of any organ

BRAZIL: It's illegal to sell or solicit organs. A 1998 law makes every adult an organ donor at death.

ISRAEL: While it is now against regulations to buy and sell organs, one pending bill would make it a felony

IRAN: Kidney sales are legal. The trade is organised and controlled by two NGOs endorsed by the government.

CHINA: It's illegal to buy or sell organs. A 1984 law allows organs to be transplanted from an executed prisoner.

71 per cent of those who sell kidneys in India are women

ommends the formation of an ethics committee that should "neither be manned by the doctors concerned nor by uninformed patients, but by medico-legal experts and members of the civil society". Ethics need to be rigorously enforced in hospitals, among surgeons, he says, adding, "The medical profession should take the responsibility for its errant members. Confiscating all illegal property and imposing very heavy fines might be one way of dealing with them."

It's perhaps easier said than done. "The Act needs to take into consideration the Indian reality," holds Dr Harsha Jauhari, chairman, Department of Renal Transplant Surgery at Gangaram Hospital, Delhi. "Nearly 1.5 lakh new patients reach end-stage kidney failure in India every year," he enumerates. Half a million die of end-stage organ failure every year; out of these, a handful of 3,500 patients get legal kidney transplants, while just 6,000 have access to dialy-

sis. Since 1994, there have been less than 1,000 organ transplants from cadavers. There are less than 700 nephrologists in India, only 350 of which are involved with transplants. And not more than 20 surgeons perform around 100 surgeries a year. "There is such a serious gap between demand and supply, infrastructure and capacity, awareness and acceptance in the country, that even the best laws stand to suffer," adds Jauhari, who is also a member of the expert committee working on the issue of amendment of the Act. "Men like Kumar wait for such opportunities to exploit the system," he says.

In a network spread across continents, much of the demand, dichotomy and dilemma come from the West. "The shifting stance of the World Transplantation Society (WTS) is a matter of intrigue and an indication of changing times," points out Sunil Shroff and Sumana Sundaram of the

Multi Organ Harvesting Aid Network, Chennai. If in the 1970s, WTS claimed buying and selling of organs to be "completely unacceptable", by 2003, in a total turn-around, living donor transplants were seen as a "regrettable necessity". In 2005, more than 16,000 kidney transplants were performed in the US, an increase of 45 per cent over 10 years. But in that time, the number of people on a kidney waiting list rose by 119 per cent.

The organ shortage in the West has spawned a new demand-and-supply equation across the world. Given the potent mixture of the desperation of rich patients in the West, the failure of the law in India, the willing collusion of medical professionals, the availability of helpless individuals from deprived sections of society and the incompetence of monitoring agencies, there are doubts about whether Ramadoss' new initiatives will work. But it's better than doing nothing and allowing the likes of Kumar to flourish.